

25VECV06269 25VECV06269

County: los-angeles

Division: Civil Law and Motion

Department: O

Hearing date: 2026-09-02

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Case Number: 25VECV06269 Hearing Date: September 2, 2026 Dept: O

NOTE: DUE TO THE TECHNICAL LIMITATIONS OF THE COURT'S TENTATIVE RULING SYSTEM, THE COURT HAS POSTED BOTH OF ITS TENTATIVES IN SUCCESSION BELOW:

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

JANE DOE 1,

Plaintiff,

vs.

LOVY ELIAS; REVELATION CHURCH LA; and DOES 1 through 50,

Defendants.

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CASE NO.: 25VECV06269

Related to: 25VECV06494

ORDER SUSTAINING IN PART DEFENDANT LOVY ELIAS' DEMURRER WITH AND WITHOUT LEAVE TO AMEND

I. BACKGROUND

Plaintiff Jane Doe 1 ("Plaintiff") filed this action against defendants Lovy Elias ("Elias") and Revelation Church LA ("RCLA") (collectively, "Defendants") on November 3, 2025. After Defendants' successful demurrers to her original Complaint, Plaintiff filed her operative first amended complaint ("FAC") on March 24, 2026. In her FAC, Plaintiff asserts claims for (1) sexual battery, (2) sexual harassment, (3) violation of Civil Code section 1708.85, (4) intentional infliction of emotional distress, (5) public disclosure of private facts, (6) breach of fiduciary duty, and (7-8) negligence in two counts. She asserts all her causes of action against Elias only, except for her second and eighth causes of action, which are alleged against both Defendants. She asserts her second cause of action for sexual harassment against Elias and RCLA and her second count of negligence against RCLA only. (Plaintiff's sixth cause of action is not directed against specific defendants in its heading, but contains allegations only referring to Elias; the Court assumes it is not directed against RCLA.)

Plaintiff alleges Elias, who holds himself out as a religious and spiritual leader affiliated with RCLA, exploited his position as her pastor to induce her to engage in a sexual relationship. More specifically, Plaintiff alleges Elias misrepresented his marital and relationship status, invoked the will of God to induce her into sex, repeatedly exhorted Plaintiff to conceive a child with him, and established and abused a system of financial and psychological over Plaintiff to achieve his various ends.

Elias demurs to the Second Amended Complaint ("SAC").

II. PROCEDURAL HISTORY

On November 3, 2025, Plaintiff filed her Complaint against Defendants.

On March 10, 2026, the Court granted the parties' Stipulated Protective Order.

On March 13, 2026, the Court sustained Elias' Demurrer in its entirety with leave to amend. The Court also sustained RCLA's Demurrer in its entirety with leave to amend. The Court denied RCLA's Motion to Strike as moot.

On March 24, 2026, Plaintiff filed a First Amended Complaint alleging (1) Sexual Battery; (2) Sexual Harassment; (3) Civil Code § 1708.85; (4) IIED; (5) Public Disclosure of Private Facts; (6) Breach of Fiduciary Duty; and (7) Negligence.

On April 30, 2026, the Court denied Elias's Motion for Sanctions pursuant to Code of Civil Procedure § 128.7.

On May 26, 2026, this action was related to Case No. 25VECV06494, Jane Doe 2 v. Love Elias, et al. This action is the lead case.

On June 1, 2026, the Court sustained in part Elias' Demurrer as to the first, second, fourth, sixth, and seventh causes of action with leave to amend. The Court sustained in part the fourth cause of action with leave to amend. The Court sustained RCLA's Demurrer to Plaintiff's second and eighth causes of action for violation of Civil Code § 51.9 and negligence, respectively, with leave to amend.

On June 15, 2026, Plaintiff filed her SAC alleging the same causes of action.

On July 17, 2026, Elias filed the instant Demurrer.

On August 20, 2026, Plaintiff filed an Opposition.

On August 26, 2026, Elias filed a Reply.

III. MEET AND CONFER

Before filing a demurrer or motion to strike, the moving party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer or motion to strike for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer or motion to strike. (See Code Civ. Proc. § 430.41(a), §435.5(a).) A declaration must be filed with a demurrer regarding the results of the meet and confer process. (See Code Civ. Proc. § 430.41(a)(3).)

The Court finds Elias satisfied his meet and confer obligation. Elias' counsel attests she met and conferred with Plaintiff's counsel telephonically. (See Declaration of Cesie C. Alvarez filed July 17, 2026, ¶ 2.)

IV. LEGAL STANDARD

A demurrer may be brought if insufficient facts are stated to support the cause of action asserted. (See Code Civ. Proc. § 430.10(e).)[1] “[T]he court gives the complaint a reasonable interpretation, and treats the demurrer as admitting all material facts properly pleaded.” (Id.) Allegations are to be liberally construed. (See Code Civ. Proc. § 452.) In testing the sufficiency of the complaint, the court must assume the truth of (1) the properly pleaded factual allegations; (2) facts that can be reasonably inferred from those expressly pleaded; and (3) judicially noticed matters. (See *Blank v. Kirwan*, (1985) 39 Cal.3d 311, 318.) A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. (See *SKF Farms v. Superior Court*, (1984) 153 Cal.App.3d 902, 905.) A demurrer can only be sustained when it disposes of an entire cause of action. (See *Poizner v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 119; *Kong v. City of Hawaiian Gardens Redev. Agency* (2003) 108 Cal.App.4th 1028, 1046.)

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (See *Goodman v. Kennedy* (1976) 18 Cal.3d 335, 348.) The burden is on the complainant to show the Court a pleading can be amended successfully. (See id.) However, “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (*Youngman v. Nevada Irrigation Dist.* (1969) 70 Cal.2d 240, 245.)

V. ANALYSIS

A. Sexual Battery

Civil Code § 1708.5(a) states that “[a] person commits a sexual battery who does any of the following: [¶] (1) Acts with the intent to cause a harmful or offensive contact with an intimate part of another, and a sexually offensive contact with that person directly or indirectly results. [¶] (2) Acts with the intent to cause a harmful or offensive contact with another by use of his or her intimate part, and a sexually offensive contact with that person directly or indirectly results. [¶] (3) Acts to cause an imminent apprehension of the conduct described in paragraph (1) or (2), and a sexually offensive contact with that person directly or indirectly results.”

“A cause of action for sexual battery under Civil Code section 1708.5 requires the batterer intend to cause a ‘harmful or offensive’ contact and the batteree suffer a ‘sexually offensive contact.’ Moreover, the section is interpreted to require that the batteree did not consent to the contact.” (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1225 [44 Cal.Rptr.2d 197], internal citation omitted.)

First, Elias argues the sexual battery claim fails on the theory that consent was vitiated by Defendant’s alleged misrepresentations. Elias argues his alleged misrepresentations allege fraudulent inducement, which does not invalidate consent. (See Dem. at 12:8-14 citing *People v. Cook* (1964) 228 Cal.App.2d 716, 719.) Elias argues the Court previously ruled Elias’ alleged misrepresentations of his religious status and commitment to Plaintiff are insufficient to sustain the battery claim with the former presenting a non-justiciable issue under the Establishment Clause and the latter asserting an impermissible seduction-based claim barred by the anti-heart balm statutes. (See Dem. at 12:25-28.)

Second, Elias argues the sexual battery claim fails on the theory consent was vitiated by Defendant’s alleged economic coercion. Elias argues consent is ineffective where duress overpowers an individual’s will, such as with force or threats of force, and Plaintiff makes no comparable allegations amounting to an overcoming of her free will. (See id., at 14:21-24 citing Rest.2d Torts, § 892B, comment j; 15:1-7 citing *People v. King* (2010) 183 Cal.App.4th 1281, 1320-21.) Elias also argues the doctrine of economic duress to invalidate consent obtained in the contractual context does not extend to invalidate consent in the context of intentional torts. (See id.) Third, Elias argues Plaintiff fails to allege the contact itself constituted an offensive touch necessary to state a sexual battery claim. (See Dem. at 16:8-16, citing *Jacqueline R. v. Household of Faith Family Church* (2002) 97 Cal.App.4th 198, 208.)

Plaintiff argues it sufficiently alleges its economic coercion theory which the Court identified as a possible basis for the sexual battery claim. (See Opp. at 4:23-5:14.) Plaintiff argues submission under the alleged coercion at paragraphs 87-88 is not consent. (See id.) Plaintiff argues the Restatement addresses economic pressure not coercion in a confidential relationship. (See id., at 5:17-19.)

Elias argues Plaintiff's argument fails to establish that alleged duress in the SAC is sufficient to invalidate consent. (See Reply at 3:23-25.) Elias argues the SAC alleges consent to the sexual acts, and while economic pressure may explain why a person consented it does not supply the element of non-consent. (See id., at 4:8-17.) Elias further argues the SAC makes conclusory allegations of duress unsupported by allegations establishing that Plaintiff had no other option but to consent. (See id., at 4:20-23, 5:23-27.)

In ruling on the FAC's claim for sexual battery, the Court found Elias' secular and nonsecular inducements were generally barred by the anti-heart balm statutes and Establishment Clause, respectively. (See June 1, 2026, Order at 7:9-14.) The Court identified sex by procurement of duress as a possible basis for this claim but stated it was "not convinced economic dependence is a proper basis for a sexual battery claim between two otherwise competent adults," and permitted Plaintiff to amend to "supply more facts in this regard and argue for the allegations' sufficiency on this basis if the pleading is challenged a third time." (Id. at 8:15-20.)

The Court addresses the economic duress theory, as the parties do not dispute the Court found the misrepresentations theory insufficient to sustain this claim. The Court is persuaded by Elias' position. "As a general rule, one who consents to a touching cannot recover in an action for battery. (Rest.2d Torts, § 892A.)" (Ashcraft v. King (1991) 228 Cal.App.3d 604, 609; see also Civ. Code § 3515.) "Duress is constraint of another's will by which he is compelled to give consent when he is not in reality willing to do so." (Rest.2d Torts, § 892B.) Here, the SAC alleges Elias manufactured total economic dependence, using it to procure sexual contact with Plaintiff. (See SAC, ¶¶ 6, 87.) "Plaintiff was wholly economically dependent on Elias. She had no independent income, no local professional network, and no financial resources independent of those Elias chose to provide." (Id., ¶ 51.) Elias "made clear...that Plaintiff's continued...economic survival depended on her continued compliance ...When Plaintiff expressed...a desire to end the relationship...Elias responded by ...threatening to withhold the financial support...to overcome her resistance and obtain her continued submission to sexual contact." (Id., at ¶¶ 87-88.) "Each act of sexual contact that continued after Plaintiff sought to withdraw was procured by this economic duress and coercion, and not by Plaintiff's free and voluntary consent. Plaintiff submitted because Elias controlled the means of her economic survival...." (Id., ¶ 89.) The Court does not find the SAC alleges Plaintiff's will was so constrained that her consent was compelled. Though she alleges she was wholly economically dependent on Elias, she does not allege she had no reasonable alternative for financially supporting herself such as by seeking employment or obtaining other sources of income.

Additionally, the Court agrees with Elias that Plaintiff has not shown any legal basis for her argument the contract doctrine of economic duress applies to consent in the context of intentional torts. Economic duress is a recognized "basis for vitiating a coerced party's consent to an agreement." (Tarpv v. County of San Diego (2003) 110 Cal.App.4th 267, 277.) The Court could not find authority showing this basis applies to intentional torts nor has Plaintiff provided the same. Thus, the Court finds the alleged threat to cease financial support unless Plaintiff consented to sexual acts with Elias does not invalidate Plaintiff's alleged reluctant consent and fails to supply the required element of non-consent.

Plaintiff also does not allege she suffered a sexually offensive contact as required to state her sexual battery claim.

Although Plaintiff has added an alternate theory and facts in her attempt to preserve this claim, she has not demonstrated a reasonable possibility that further amendment will achieve a different result. Similarly, she has not made any showing in her opposition her pleading could be amended successfully if given the chance.

Thus, the Court SUSTAINS Elias' Demurrer to the First Cause of Action for Sexual Battery WITHOUT LEAVE TO AMEND.

B. Sexual Harassment (Civil Code § 51.9)

The elements of Civil Code § 51.9 are: (1) "a business, service, or professional relationship between the plaintiff and defendant or the defendant holds himself or herself out as being able to help the plaintiff establish a business, service, or professional relationship with the defendant or a third party"; (2) the defendant must have "made sexual advances, solicitations, sexual requests, demands for sexual compliance by the plaintiff, or engaged in other verbal, visual, or physical

conduct of a sexual nature or of a hostile nature based on gender, that were unwelcome and pervasive or severe”; and (3) “[t]he plaintiff has suffered or will suffer economic loss or disadvantage or personal injury” as a result of that conduct. (Civ. Code § 51.9(a).)

The statute states an illustrative list of persons for whom “such a relationship” may exist with a plaintiff, including a physician, attorney, landlord, teacher, or director or producer, and expressly includes any “relationship that is substantially similar” to those enumerated. (Id., § 51.9(a)(1).)

“To be pervasive, the sexually harassing conduct must consist of more than a few isolated incidents; it must be so egregious as to alter the conditions of the underlying professional relationship. [A]n isolated incident of harassing conduct may qualify as severe when it consists of ‘a physical assault or the threat thereof.’” (Thomas v. Regents of Univ. of Cal. (2023) 97 Cal.App.5th 587, 608-09 (cleaned up, emphasis in original).)

The Ninth Circuit persuasively discussed the construction and purpose of section 51.9 in Judd v. Weinstein (2020) 967 F.3d 952, 957. “[S]ection 51.9 prohibits sexual harassment in ‘a wide variety of business relationships outside the workplace.’” (Id., [emphasis added].) Further:

“[E]ach of the enumerated examples consists of a relationship wherein an inherent power imbalance exists such that, by virtue of his or her ‘business, service, or professional’ position, one party is uniquely situated to exercise coercion or leverage over the other. This is the key element common to every example in the statute. For example, teachers can exercise coercive power over their students because they control their students’ grades. Similarly, landlords can exercise coercive power over their tenants because they control access to the tenant’s security deposits and, at least to some extent, access to the premises.”

(Id.)

In Judd, the Ninth Circuit depended on facts demonstrating the relationship between the plaintiff and the defendant “was characterized by a considerable imbalance of power substantially similar to the imbalances that characterize the enumerated relationships in section 51.9.” (Id.)

Elias argues this claim fails because Plaintiff does not allege she was a professional seeking employment or career advancement from Elias. (See Dem. at 17:13-15.) Elias also argues a power imbalance was not characteristic of Plaintiff’s alleged offered position as contemplated by § 51.9 and Judd. (See id. at 17:23-18:1.) Elias argues provision of financial, housing, and medical support does not create a qualifying relationship under the statute. (See id., at 18:2-14.) Finally, Elias argues the SAC alleges an ongoing intimate relationship, not pervasive harassment. (See id., at 18:15-22.)

Plaintiff incorporates its opposition to RCLA’s demurrer.[2] Plaintiff argues the SAC’s paragraphs 78 through 84 bridge the gap the Court previously identified by alleging RCLA engaged in commercial activity. (See Opp. at 6:9-19.) Plaintiff also argues the SAC also alleges Elias held himself out as able to install Plaintiff in a paid professional position within the RCLA enterprise and his music, media, and ministry businesses. (See id.) Plaintiff argues a power imbalance existed in her relationship with Elias because he controlled the enterprise and position. (See id., at 6:20-27.) Finally, Plaintiff argues that distribution of Plaintiff’s images constitutes pervasive harassment. (See id., at 7:1-4.)

Elias argues new allegations that RCLA conducts ordinary organizational and revenue generating activities does not establish that RCLA is a commercial enterprise sufficient to allege a business relationship with Plaintiff. (See Reply at 7:17-21.) Elias argues allegations he held himself out to Plaintiff are also insufficient because a promise to install Plaintiff in a role within Elias’s ministry does not become a qualifying professional relationship merely because the SAC now characterizes it as paid. (See id., at 8:2-3.) Elias further argues Plaintiff does not allege he demanded sexual contact in exchange for the promised RCLA role or that she held the promised position, and the sexual conduct altered the conditions of that employment or professional role. (See id., at 8:8-9.)

Previously, the Court ruled that Plaintiff's FAC implicated § 51.9(a)(1)'s clause providing for liability where "the defendant holds himself or herself out as being to help the plaintiff establish a ... professional relationship". (Civ. Code § 51.9(a)(1); see also June 1, 2026, Order at 10:1-13.) The Court finds the SAC sufficiently alleges her § 51.9 claim based on this second clause of the statute. The SAC alleges Elias held himself out as able to help Plaintiff establish a professional relationship with himself and with RCLA by offering Plaintiff a leadership position within RCLA and within his commercial music, media, and personal-brand business. (See SAC, ¶¶ 79, 81-83.) This is sufficient to satisfy the second clause of § 51.9(a)(1).

The Court finds Plaintiff does not state a claim based on the first clause of § 51.9(a)(1). The Court agrees with Elias that Plaintiff's economic dependence on Elias and his direction over her fertility care does not allege "a business, service, or professional relationship" within the meaning of the statute. (See SAC, ¶¶ 109-115.)

However, the Court finds Plaintiff fails to allege the second element of a § 51.9 claim—acts of a sexual nature that were unwelcome and severe or pervasive. The SAC alleges Elias made unwelcome sexual advances or requests including "inducing Plaintiff into continued sexual activity through false representations; directing Plaintiff's reproductive medical care as a means of continued sexual entanglement; and sharing Plaintiff's intimate photographs with third parties as a tool of further exploitation." (SAC, ¶ 118.) However, none of these sexual requests are tied to Elias holding himself out to Plaintiff to establish her professional relationship with him or RCLA. Plaintiff is instead alleging his sexual requests were related to his representations of religious status and commitment to Plaintiff. (See *id.*, ¶¶ 28-29, 45, 56.) Further, because the SAC appears to allege the sexual requests were not tied to Elias' helping Plaintiff establish a professional relationship, Plaintiff also fails to allege that the conduct altered the conditions of the professional relationship to be pervasive or severe. Plaintiff also does not allege the sexual requests were unwelcome, instead she alleges she consented to them. (See *id.*, ¶ 43, 65.)

Given these defects are curable – assuming there is a factual basis for pleading them – the Court finds there is a reasonable possibility that amendment will fix them.

Thus, the Court SUSTAINS Elias' Demurrer to the Second Cause of Action for Sexual Harassment (Civil Code § 51.9) WITH LEAVE TO AMEND.

C. Intentional Infliction of Emotional Distress & Public Disclosure of Private Facts

The Court previously ruled the alleged sharing of Plaintiff's intimate images was sufficiently outrageous to support the first element of an IIED claim and therefore allowed the claim to proceed on that theory, while sustaining the demurrer to the other theories based on promises concerning conception, alleged fertility control, and religious exploitation. (See June 1, 2026, Order at 12:16-19.) The Court previously overruled the demurrer to the public disclosure claim. (See *id.*, at 13:12-18.)

Elias now demurs to the IIED claim's second and third elements. (See Dem. at 18:27-28.) Elias demurs to the public disclosure claim despite acknowledging the Court overruled the demurrer to this claim because whether Plaintiff has alleged publicity warrants further consideration. (See *id.*, at 20:2-6; Reply at 10:26-27.)

Plaintiff argues the SAC's material allegations for these claims are the same and Elias cannot demur to these claims under Code of Civil Procedure § 430.41(b). (See Opp. at 3:16-24, 4:3-5.)

The Court agrees with Plaintiff. Code of Civil Procedure § 430.41(b) provides "A party demurring to a pleading that has been amended after a demurrer to an earlier version of the pleading was sustained shall not demur to any portion of the amended complaint...on grounds that could have been raised by demurrer to the earlier version of the complaint..." There appears to be a split of appellate authority on whether it is proper to demur again to a cause of action as to which a demurrer has already been overruled. On the one hand, cases such as *Pacific States Enterprises, Inc. v. City of Coachella* (1993) 13 Cal.App.4th 1414 provide it is proper. (See *Pacific States Enterprises, Inc.*, 13 Cal.App.4th at 1420, fn. 3; see also *Pavicich v. Santucci* (2000) 85 Cal.App.4th 382, 389 fn. 3.) On the other hand, *Bennett v. Suncloud* (1997) 56 Cal.App.4th 91 provides that to entertain such a demurrer is improper. (See *Bennett*, 56 Cal.App.4th at 97.) Where there is a split of authority, "the court exercising inferior jurisdiction can and must make a choice between the conflicting decisions." (*Auto Equity Sales, Inc.*

v. Superior Court of Santa Clara County (1962) 57 Cal.2d 450, 456.)

The Court finds it appropriate here to follow Bennett in the interest of avoiding piecemeal demurrers, especially given how protracted the pleading stage has been in this case. Elias had the opportunity to attack these claims and is bound by an overruling of that attack. Moreover, the Court sustained the IIED claim on all theories besides the disclosure of images theory. Accordingly, no grounds other than those raised in the first demurrer can be raised in a subsequent demurrer.

Thus, the Court OVERRULES Elias' Demurrer to the Fourth and Fifth Causes of Action for IIED and Public Disclosure.

D. Breach of Fiduciary Duty

"The elements of a cause of action for breach of fiduciary duty are the existence of a fiduciary relationship, breach of fiduciary duty, and damages." (Oasis West Realty, LLC v. Goldman (2011) 51 Cal.4th 811, 820.) A fiduciary relation or confidential relationship may give rise to a fiduciary duty. (See Richelle L. v. Roman Catholic Archbishop (2003) 106 Cal.App.4th 257, 270.) "Unlike confidential relations, fiduciary relations arise out of certain canonical relationships that are legally defined and regulated." (Id., 106 Cal.App.5th at 271.) The essential elements of a confidential relationship that give rise to a fiduciary duty are "1) The vulnerability of one party to the other which 2) results in the empowerment of the stronger party by the weaker which 3) empowerment has been solicited or accepted by the stronger party and 4) prevents the weaker party from effectively protecting itself." (Id., 106 Cal.App.5th at 272.) "The vulnerability that is the necessary predicate of a confidential relation, and which the law treats as 'absolutely essential' [citation], usually arises from advanced age, youth, lack of education, weakness of mind, grief, sickness, or some other incapacity." (Id., at 273.)

Elias argues the SAC fails to allege a fiduciary or confidential relationship based on his role as Plaintiff's pastor, spiritual adviser, or as her financial supporter, as this Court previously ruled. (See Dem. at 20:24-25:2.)

Plaintiff argues the SAC cures the defect by alleging Elias solicited and accepted Plaintiff's trust over her finances, housing, and medical care resulting in his dominion. (See Opp. at 7:9-12.) Plaintiff argues whether a confidential relationship did exist is a question of fact. (See id., at 7:12-15, citing Persson v. Smart Inventions, Inc. (2005) 125 Cal.App.4th 1141, 1160-1162, and Barbara A. v. John G. (1983) 145 Cal.App.3d 369.)

Elias argues Plaintiff does not cure the defect by newly alleging conclusions that Plaintiff was vulnerable and in a confidential relationship. (See Reply at 9:6-12.) Elias argues the SAC does not allege Plaintiff was vulnerable as necessary for a confidential relationship. (See Reply at 9:13-20, citing Persson, 125 Cal.App.4th at 1161-1162.) Nor was there an attorney-client relationship as in Barbara A., 145 Cal.App.3d at 384. (See id.)

The Court finds the SAC alleges no fiduciary relationship as there is no alleged recognized legal relationship. The Court also finds the SAC fails to allege a confidential relationship. Persson acknowledges "the existence of a confidential relationship generating a fiduciary duty is a question of fact" but case law nonetheless distills the elements of a confidential relationship given it is a vague concept. (See Persson, 125 Cal.App.4th at 1161.) Persson rejects the notion a confidential relationship arises where one undertakes to do something for another who relies on him to do so in the absence of any incapacity or vulnerability. (See id., at 1162.) Here, the SAC alleges Elias directed Plaintiff's reproductive health decisions and controlled her economic and housing status. (See SAC, ¶¶ 163-165.) Plaintiff trusted and confided in Elias. (See id., ¶ 171.) Notably, however, Plaintiff does not allege the vulnerability element of a confidential relationship. Though the SAC alleges Plaintiff was a "vulnerable wom[a]n seeking to find God", this nonsecular basis is not actionable under the Establishment Clause as discussed in Richelle L., 106 Cal.App.4th at 280-81. (See SAC, ¶¶ 5, 176.) The SAC alleges no other facts showing Plaintiff was vulnerable due to some secular incapacity and that such vulnerability resulted in Elias' empowerment.

Given the lack of substantive progress in curing the defects associated with this cause of action and the lack of , the Court finds there is no reasonable possibility that further amendment would result in a successful claim. Likewise, she has not made any showing in her opposition her pleading could be amended successfully if given the chance.

Thus, the Court SUSTAINS Elias' Demurrer to the Sixth Cause of Action for Breach of Fiduciary Duty WITHOUT LEAVE TO AMEND.

E. Negligence

To state a claim for negligence, Plaintiff must allege the elements of (1) the existence of a legal duty of care, (2) breach of that duty, and (3) proximate cause resulting in an injury. (See *McIntyre v. Colonies-Pacific, LLC* (2014) 228 Cal.App.4th 664, 671.) Whether a defendant owes a duty of care is a question of law, depending on the foreseeability of the risk and upon a weighing of policy considerations for and against imposition of liability. (See *Marlene F. v. Affiliated Psychiatric Medical Clinic, Inc.* (1989) 48 Cal.3d 583, 588.)

Elias argues no legal duty is alleged based on the SAC's allegations of Elias' provision of financial support and housing and direction over her reproductive health care. (See Dem. at 21:19-27.)

Plaintiff argues the SAC alleges a voluntarily assumed duty. (See Opp. at 7:22-27 citing *Artiglio v. Corning Inc.* (1998) 18 Cal.4th 604.) Plaintiff also argues the SAC alleges a duty to not disclose intimate images. (See id., at 7:27-8:2.)

Elias argues *Artiglio*, 18 Cal.4th at 614–615, concerns negligent-undertaking liability, where an individual who undertakes a task may owe a duty to exercise reasonable care in performing that undertaking. (See Reply at 9:21-28.) Elias argues Plaintiff does not allege that Elias negligently performed any undertaking to provide financial support, housing, or fertility care, only that he threatened to later withhold those services. (See id., at 10:1-5.)

The Court finds Plaintiff fails to allege a duty to sustain her negligence claim. The Court agrees with Elias that at most, the SAC alleges he undertook the provision of financial support, reproductive health services, and housing. (See SAC, ¶¶ 192-194.) That Elias shared Plaintiff's private photographs does not allege a breach of that undertaking. (See id., ¶ 200.) Additionally, allegations Elias breached his undertaking of providing financial support, housing, and reproductive healthcare by making false representations of his religious status and commitment to Plaintiff cannot give rise to a legal duty under the Establishment Clause and anti-heart balm statutes. Thus, the SAC fails to allege duty.

Given the lack of substantive progress in curing the defects associated with this cause of action and the lack of , the Court finds there is no reasonable possibility that further amendment would result in a successful claim. Likewise, she has not made any showing in her opposition her pleading could be amended successfully if given the chance.

The Court SUSTAINS Elias' Demurrer to the Seventh Cause of Action, Count One, for Negligence WITHOUT LEAVE TO AMEND.

VI. CONCLUSION

Based on the foregoing, the Court SUSTAINS IN PART Elias' Demurrer WITH LEAVE TO AMEND Second Cause of Action for Sexual Harassment (Civil Code § 51.9) and WITHOUT LEAVE TO AMEND as to the First Cause of Action for Sexual Battery, Sixth Cause of Action for Breach of Fiduciary Duty, and Seventh Cause of Action, Count One, for Negligence.

The Court OVERRULES Elias' Demurrer to the Fourth and Fifth Causes of Action for IIED and Public Disclosure.

Plaintiff has leave to file an amended pleading no later than September 18, 2026.

IT IS SO ORDERED.

DATED: September 2, 2026

Hon. Michael R. Amerian

Judge, Superior Court

[1] All statutory references are to California codes unless stated otherwise.

[2] The Court will not rely on that opposition in this ruling as Plaintiff cannot incorporate arguments from other filings into this Opposition.

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

JANE DOE 1,

Plaintiff,

vs.

LOVY ELIAS; REVELATION CHURCH LA; and DOES 1 through 50,

Defendants.

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CASE NO.: 25VECV06269

Related to: 25VECV06494

ORDER SUSTAINING DEFENDANT REVELATION CHURCH LA'S DEMURRER WITH LEAVE TO AMEND

ORDER DENYING DEFENDANT REVELATION CHURCH LA'S MOTION TO STRIKE

I. BACKGROUND

Plaintiff Jane Doe 1 ("Plaintiff") filed this action against defendants Lovy Elias ("Elias") and Revelation Church LA ("RCLA") (collectively, "Defendants") on November 3, 2025. After Defendants' successful demurrers to her original Complaint, Plaintiff filed her operative first amended complaint ("FAC") on March 24, 2026. In her FAC, Plaintiff asserts claims for (1) sexual battery, (2) sexual harassment, (3) violation of Civil Code section 1708.85, (4) intentional infliction of emotional distress, (5) public disclosure of private facts, (6) breach of fiduciary duty, and (7-8) negligence in two counts. She asserts all her causes of action against Elias only, except for her second and eighth causes of action, which are alleged against both Defendants. She asserts her second cause of action for sexual harassment against Elias and RCLA and her second count of negligence against RCLA only. (Plaintiff's sixth cause of action is not directed against specific defendants in its heading, but contains allegations only referring to Elias; the Court assumes it is not directed against RCLA.)

Plaintiff alleges Elias, who holds himself out as a religious and spiritual leader affiliated with RCLA, exploited his position as her pastor to induce her to engage in a sexual relationship. More specifically, Plaintiff alleges Elias misrepresented his marital and relationship status, invoked the will of God to induce her into sex, repeatedly exhorted Plaintiff to conceive a child with him, and established and abused a system of financial and psychological over Plaintiff to achieve his various ends.

RCLA demurs and moves to strike portions of the Second Amended Complaint ("SAC").

II. PROCEDURAL HISTORY

On November 3, 2025, Plaintiff filed her Complaint against Defendants.

On March 10, 2026, the Court granted the parties' Stipulated Protective Order.

On March 13, 2026, the Court sustained Elias' Demurrer in its entirety with leave to amend. The Court also sustained RCLA's Demurrer in its entirety with leave to amend. The Court denied RCLA's Motion to Strike as moot.

On March 24, 2026, Plaintiff filed a First Amended Complaint alleging (1) Sexual Battery; (2) Sexual Harassment; (3) Civil Code § 1708.85; (4) IIED; (5) Public Disclosure of Private Facts; (6) Breach of Fiduciary Duty; and (7) Negligence.

On April 30, 2026, the Court denied Elias's Motion for Sanctions pursuant to Code of Civil Procedure § 128.7.

On May 26, 2026, this action was related to Case No. 25VECV06494, Jane Doe 2 v. Love Elias, et al. This action is the lead case.

On June 1, 2026, the Court sustained in part Elias' Demurrer as to the first, second, sixth, and seventh causes of action with leave to amend. The Court sustained in part the fourth cause of action with leave to amend. The Court sustained RCLA's Demurrer to Plaintiff's second and eighth causes of action for violation of Civil Code § 51.9 and negligence, respectively, with leave to amend.

On June 15, 2026, Plaintiff filed her SAC alleging the same causes of action.

On July 20, 2026, RCLA filed the instant Demurrer with Motion to Strike.

On July 30, 2026, Plaintiff filed her Opposition to the Demurrer.

On August 20, 2026, Plaintiff filed her Opposition to the Motion to Strike.

On August 26, 2026, RCLA filed a Reply to the Motion to Strike.

III. MEET AND CONFER

Before filing a demurrer or motion to strike, the moving party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer or motion to strike for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer or motion to strike. (See Code Civ. Proc. § 430.41(a), §435.5(a).) A declaration must be filed with a demurrer regarding the results of the meet and confer process. (See Code Civ. Proc. § 430.41(a)(3).)

The Court finds RCLA satisfied its meet and confer obligation. RCLA's counsel attests he met and conferred with Plaintiff's counsel telephonically for approximately 20 minutes. (See Declaration of Jing H. Cherng filed July 20, 2026, ¶ 2.)

IV. DEMURRER

A. Legal Standard

A demurrer may be brought if insufficient facts are stated to support the cause of action asserted. (See Code Civ. Proc. § 430.10(e).)[1] "[T]he court gives the complaint a reasonable interpretation, and treats the demurrer as admitting all material facts properly pleaded." (Id.) Allegations are to be liberally construed. (See Code Civ. Proc. § 452.) In testing the sufficiency of the complaint, the court must assume the truth of (1) the properly pleaded factual allegations; (2) facts that can be reasonably inferred from those expressly pleaded; and (3) judicially noticed matters. (See *Blank v. Kirwan*, (1985) 39 Cal.3d 311, 318.) A demurrer can only be sustained when it disposes of an entire cause of action. (See *Poizner v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 119; *Kong v. City of Hawaiian Gardens Redev. Agency* (2003) 108 Cal.App.4th 1028, 1046.)

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (See *Goodman v. Kennedy* (1976) 18 Cal.3d 335, 348.) The burden is on the complainant to show the Court a pleading can be amended successfully. (See id.) However, "[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is

error to sustain a demurrer without leave to amend.” (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245.)

B. Judicial Notice

The Court denies Plaintiff’s request for judicial notice as there are no exhibits attached.

C. Analysis

1. Sexual Harassment (Civil Code § 51.9)

The elements of Civil Code § 51.9 are: (1) “a business, service, or professional relationship between the plaintiff and defendant or the defendant holds himself or herself out as being able to help the plaintiff establish a business, service, or professional relationship with the defendant or a third party” (Civ. Code § 51.9(a)(1)-(2)); (2) the defendant must have “made sexual advances, solicitations, sexual requests, demands for sexual compliance by the plaintiff, or engaged in other verbal, visual, or physical conduct of a sexual nature or of a hostile nature based on gender, that were unwelcome and pervasive or severe”; and (3) “[t]he plaintiff has suffered or will suffer economic loss or disadvantage or personal injury” as a result of that conduct. (See *id.*, § 51.9(a)(2)-(3).)

The statute states an illustrative list of persons for whom “such a relationship” may exist with a plaintiff, including a physician, attorney, landlord, teacher, or director or producer, and expressly includes any “relationship that is substantially similar” to those enumerated. (*Id.*, § 51.9(a)(1).)

The Ninth Circuit persuasively discussed the construction and purpose of section 51.9 in *Judd v. Weinstein* (2020) 967 F.3d 952, 957. “[S]ection 51.9 prohibits sexual harassment in ‘a wide variety of business relationships outside the workplace.’” (*Id.*, [emphasis added].) Further:

“[E]ach of the enumerated examples consists of a relationship wherein an inherent power imbalance exists such that, by virtue of his or her ‘business, service, or professional’ position, one party is uniquely situated to exercise coercion or leverage over the other. This is the key element common to every example in the statute. For example, teachers can exercise coercive power over their students because they control their students’ grades. Similarly, landlords can exercise coercive power over their tenants because they control access to the tenant’s security deposits and, at least to some extent, access to the premises.”

(*Id.*)

In *Judd*, the Ninth Circuit depended on facts demonstrating the relationship between the plaintiff and the defendant “was characterized by a considerable imbalance of power substantially similar to the imbalances that characterize the enumerated relationships in section 51.9.” (*Id.*)

An employer or other principal is not strictly liable for the tortious acts of its employee or agent. (See *Jeewarat v. Warner Bros Entertainment, Inc.* (2009) 177 Cal.App.4th 427, 435.) For an employer or principal to be vicariously liable, the employee/agent must commit relevant torts within the course and scope of employment. (See *Baptist v. Robinson* (2006) 143 Cal.App.4th 151, 160.)

RCLA argues Plaintiff fails to cure the defects identified in the Court’s June 1, 2026 Order. First, RCLA argues the new allegations fail to establish the RCLA operates a secular enterprise or that Elias offered Plaintiff a role in one. (See Dem. at 3:22-23.) RCLA argues the SAC alleges Plaintiff’s proposed role was church governance and ministry, not that Plaintiff would sell merchandise, produce or monetize media, maintain commercial accounts, or participate in any other activity she relies on

to characterize RCLA as a commercial enterprise. (See *id.*, at 3:27-4:6.) RCLA also argues Plaintiff's alleged proposed role was based on her religious relationship with Elias and thus liability is precluded by *Richelle L. v. Roman Catholic Archbishop of San Francisco* (2003) 106 Cal.App.4th 257. (See *Dem.* at 4:17-24.) RCLA further argues Plaintiff's theory presents a First Amendment problem as the Court would be unable to determine that the proposed position was actually secular without evaluating RCLA's relationship between its religious and revenue-generating activities. (See *id.*, at 4:25-28.)

Second, RCLA argues the SAC's allegations of a prospective role offered to Plaintiff do not invoke the second clause of § 51.9(a)(1) because the SAC does not allege Elias offered to connect Plaintiff with an employer, client, producer, customer, or independent professional opportunity. (See *id.*, at 5:21-23, 6:3-8, citing *Judd*, 967 F.3d at 952.) Third, RCLA argues because this claim is predicated on alleged romantic deception, seduction, and alleged promises concerning exclusivity, such allegations are barred by Civil Code §§ 43.4 and 43.5.[2] RCLA argues Plaintiff cannot use § 51.9 to recover for the alleged romantic deception that the Court has already held unactionable merely by characterizing RCLA as commercial and the promised church role as professional. (See *id.*, at 7:9-13.)

In opposition, Plaintiff argues the SAC's paragraphs 78 through 84 bridge the gap the Court previously identified as they allege RCLA operates as a revenue-generating commercial enterprise and that the role Elias offered Plaintiff was a paid executive position within that enterprise wherein she would participate in commercial activity. (See *Opp.* at 4:18-26, 5:6-12.) Plaintiff argues there is no constitutional issue implicated as the SAC alleges that each cause of action rests on secular conduct adjudicable under neutral principles of law. (See *id.*, at 5:15-16.)

Second, Plaintiffs argue the SAC separately states a claim under § 51.9(a) second clause. Plaintiff argues paragraphs 83 and 125 allege Elias' representation of his authority and ability to install Plaintiff in a paid position. (See *id.*, at 6:7-12.) Third, Plaintiff argues while *Richelle L.* bars amatory claims, it expressly preserves independent torts properly pled. Plaintiff alleges a theory of unwelcome sexual contact within a statutorily qualifying relationship and economic coercion that is sufficiently pled. (See *id.*, at 7:1-16.)

In reply, RCLA reasserts the SAC alleges Plaintiff a role to perform ministry work, not that she would hold any post defined by RCLA's alleged commercial activity. (See *Reply* at 2:20-23.) RCLA argues because the SAC alleges Plaintiff's proposed role was ministry work, it cannot form a basis for a qualifying relationship under § 51.9. (See *id.*, at 3:3-12.) RCLA also argues the SAC does not satisfy the second clause of § 51.9(a)(1) because this Court has already held a ministry relationship is not a § 51.9 relationship. (See *id.*, at 4:12-13, citing *Judd*, 967 F.3d at 957.) Finally, RCLA argues Plaintiff's first claim is a mere recharacterization of her amatory claims based on Elias' representations of love and is thus barred under the anti-heart balm statutes. (See *Reply* at 5:18-27.) RCLA cites *Richelle L.*, which holds "All the 'anti-heart-balm statute' precludes is the mere recharacterization of the abolished amatory cause of action as a form of negligence or some other acknowledged tort... The question is whether the essence of the cause of action is something more than mere seduction." (*Richelle L.*, 106 Cal.App.4th 267.)

For reasons stated in Elias' Demurrer, Plaintiff failed to state a claim for a violation of section 51.9. As a result, the Court SUSTAINS RCLA's Demurrer to Plaintiff's Second Cause of Action for Violation of § 51.9 WITH LEAVE TO AMEND.

2. Negligence (Negligent Hiring, Retention, or Supervision)

Plaintiff's seventh cause of action is titled as a claim for negligence. Because Plaintiff concedes this is a claim for negligent hiring, retention, or supervision, the Court will treat it as such. (See *Opp.* at 7:24-28.)

"[A]n employer can be liable to a third person for negligently hiring, supervising, or retaining an unfit employee." (*Doe v. Capital Cities* (1996) 50 Cal.App.4th 1038, 1054.) The elements of a cause of action for negligent hiring, retention, or supervision are (1) the employer's hiring, retaining, or supervising an employee; (2) the employee was incompetent or unfit; (3) the employer knew or should have known the employee was unfit; and (4) harm occurs. (See *Evan F. v. Hughson United Methodist Church* (1992) 8 Cal.App.4th 828, 836-837.)

"To establish negligent supervision, a plaintiff must show that a person in a supervisory position over the actor had prior knowledge of the actor's propensity to do the bad act." (See *Z.V. v. County of Riverside* (2015) 238 Cal.App.4th 889, 902; *Doe*, supra, 50 Cal.App.4th at 1054.) "[T]he cornerstone of a negligent hiring theory is the risk that the employee will act in a certain way and the employee does act in that way." (*Doe v. Capital Cities* (1996) 50 Cal.App.4th 1038, 1054-1055.)

RCLA argues the SAC's allegations of Elias' conduct do not fall within the scope of his employment and thus this claim fails as to RCLA. (See Dem. at 8:12-17, citing *Lisa M. v. Henry Mayo Newhall Memorial Hospital* (1995) 12 Cal.4th 291; 8:25-9:3, 9:19-25.). Next, RCLA argues the SAC does not allege antecedent knowledge to state a negligent retention claim. (See Dem. at 10:24-11:2.) RCLA also argues its Motion to Strike addresses Plaintiff's alter ego and ratification allegations, which do not cure the deficiencies in this claim. (See id., at 12:24-27.)

In opposition, Plaintiff argues scope of employment is an element of respondeat superior, and this claim is one for negligent retention. (See Opp. at 8:1-4.) Plaintiff argues the SAC alleges RCLA had prior knowledge of complaints regarding Elias' conduct. (See id., at 8:13-24, citing ¶¶ 68-70, 72, 211-213.) Plaintiff also argues the SAC alleges RCLA's failure to monitor or restrict Elias' access to RCLA computers and RCLA's failure to remove the uploaded images caused Plaintiff injury. (See Opp. at 9:1-9.)

In reply, RCLA argues, as this Court identified in its June 1, 2026, Order, the SAC does not plead RCLA knew before Plaintiff's images were disclosed that Elias obtained or distributed intimate photographs. (See Reply at 7:18-21.) RCLA argues that it supplied the computers which Elias used to distribute the images does not establish antecedent knowledge. (See id., at 8:3-11, citing *Delfino v. Agilent Technologies, Inc.* (2006) 145 Cal.App.4th 790, 815-817.) RCLA further argues Plaintiff concedes respondeat superior and fails to rebut causation. (See Reply at 9:2-7.)

As an initial matter, "[l]iability for negligent supervision and/or retention of an employee is one of direct liability for negligence, not vicarious liability." (*Delfino*, 145 Cal.App.4th at 815.) Accordingly, the Court will not address whether vicarious liability is alleged under Plaintiff's negligent hiring claim.

The Court finds the SAC does not cure the defect identified in the June 1, 2026, Order, in which the Court observed, "Plaintiff's FAC supplies new facts supporting RCLA's knowledge Elias might abuse his position or misuse church finances to victimize parishioners, but not in a manner that relates to the third cause of action." (June 1, 2026, Order.) Here, the SAC similarly alleges RCLA's officers, directors, and supervisory personnel had actual notice of and ratified Elias' "use of church funds to financially support women he was sexually exploiting; (b) prior complaints or expressions of concern by congregants or staff regarding Elias's conduct toward female members; and (c) Elias's use of church resources, including travel funds[.]" (SAC, ¶¶ 72-73.) The SAC alleges RCLA received these complaints prior to or during the period of Plaintiff's injury and that RCLA had opportunity to observe the pattern of Elias' conduct toward multiple women. (See id., ¶¶ 212-213.) The Court finds the SAC does not allege antecedent knowledge with respect to Plaintiff's injury. More specifically, there are no allegations that RCLA knew Elias was unfit based on prior knowledge that he had a propensity for distributing intimate images on RCLA owned computers.

Thus, the Court SUSTAINS RCLA's Demurrer to the Seventh Cause of Action for Negligence WITH LEAVE TO AMEND.

V. MOTION TO STRIKE

A. Legal Standard

The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (See Code Civ. Proc. § 436(a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (See id. at § 436(b).) This provision is for "the striking of a pleading due to improprieties in its form, or in the procedures pursuant to which it was filed." (See *Ferraro v. Camarlinghi* (2008) 161 Cal.App.4th 509, 528 [emphasis in original].) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (See Code Civ. Proc. at § 437.)

B. Analysis

1. Alter Ego

"In California, two conditions must be met before the alter ego doctrine will be invoked. First, there must be such a unity of interest and ownership between the corporation and its equitable owner that the separate personalities of the corporation and the shareholder do not in reality exist. Second, there must be an inequitable result if the acts in question are treated as those of the corporation alone." (Sonora Diamond Corp. v. Superior Court (2000) 83 Cal.App.4th 523, 538.) When these conditions are met, courts disregard the corporate structure and impute the actions of a corporation onto its owner or parent. (See McLaughlin v. L. Bloom Sons Co. (1962) 206 Cal.App.2d 848, 851-852.)

In determining whether to apply the doctrine, California courts consider a number of factors which include but are not limited to (1) inadequate capitalization, (2) commingling of funds, records, and other assets, (3) disregard of corporate formalities (e.g., stock issuance, holding board meetings, keeping of minutes, election of officers and directors, segregation of corporate records), (4) the same equitable ownership in the two entities, (5) the same directors and officers, (6) confusion about corporate identity, (7) use of the same offices and employees, (8) use of subsidiary as a mere shell or conduit for the affairs of the parent, and (9) lack of segregation of corporate records. (Brooklyn Navy Yard Cogeneration Partners, L.P. v. Superior Court (Parsons Corp.) (1997) 60 Cal.App.4th 248, 258.)

There is not a heightened pleading standard for alter ego theory; it is adequate for a plaintiff to allege "ultimate rather than evidentiary facts." (Rutherford Holdings, LLC v. Plaza Del Rey (2014) 223 Cal.App.4th 221, 236 [internal quotations and citation omitted].) Moreover, "less particularity [of pleading] is required where the defendant may be assumed to possess knowledge of the facts at least equal, if not superior, to that possessed by the plaintiff, which certainly is the case" when analyzing alter ego theory at the pleading stage. (Id.)

RCLA argues the SAC consists of unsupported legal conclusions weaker than the alter ego allegations than those rejected in Leek v. Cooper (2011) 194 Cal.App.4th 399. (See Mot. at 3:14-20.) RCLA argues the Court should strike paragraph 17 and corresponding alter-ego references from the SAC. (See Mot. at 4:8-11.)

Plaintiff argues its alter ego allegations are sufficiently alleged. (See Opp. at 6:6-10 citing Rutherford, 223 Cal.App.4th at 235-36.)

RCLA argues the SAC alleges outside reverse veil piercing as it alleges RCLA is an alter ego of Elias. (See Reply at 5:16-26.) RCLA argues Postal Instant Press, Inc. v. Kaswa Corp. (2008) 162 Cal.App.4th 1510, 1512-1513, rejects the doctrine in the context of corporations and Curci Investments, LLC v. Baldwin (2017) 14 Cal.App.5th 214, 222 permitted it in the context of LLCs. (See id.)

The SAC does not specify whether RCLA is a corporation or LLC. (See SAC, ¶ 13.) Thus, the Court cannot determine whether reverse veil piercing is permitted in this context and only evaluates the sufficiency of the allegations at paragraph 17.

In Rutherford, the Court found the following alter ego allegations sufficient: "Rutherford alleged that Caswell dominated and controlled PDR; that a unity of interest and ownership existed between Caswell and PDR; that PDR was a mere shell and conduit for Caswell's affairs; that PDR was inadequately capitalized; that PDR failed to abide by the formalities of corporate existence; that Caswell used PDR assets as her own; and that recognizing the separate existence of PDR would promote injustice." (See Rutherford, 223 Cal.App.4th at 235.) Here, Plaintiff's alter ego allegations at paragraph 17 are sufficient. Plaintiff alleges the ultimate facts that a unity of interest existed between RCLA and Elias, Elias used RCLA funds as his own, and that adherence to the fiction of a separate RCLA would sanction fraud and promote injustice. (See SAC, ¶ 17.) These allegations are like those found to pass muster in Rutherford.

Thus, the Court DENIES RCLA's Motion to Strike the alter ego allegations.

2. Diversion of RCLA Funds

RCLA argues the SAC makes unsupported conclusory allegations that Elias used RCLA funds for personal use. (See Mot. at 4:17-22, citing SAC ¶¶ 71, 72, 207, 211, 214.) RCLA argues there are no factual allegations identifying any account, invoice, or otherwise from which Elias allegedly diverted funds. (See id., at 4:23-26.)

Plaintiff argues the SAC pleads ultimate facts. (See Opp. at 5:10-16.)

As RCLA acknowledges, Plaintiff need only plead ultimate facts. After reviewing the allegations RCLA disputes, the Court finds Plaintiff alleges ultimate facts that Elias, as pastor at RCLA, had access to RCLA funds which he diverted to provide financial support to Plaintiff and other women. (See SAC ¶¶ 71, 72, 207, 211, 214.) Thus, the Court DENIES RCLA's Motion to Strike these allegations.

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3. Punitive Damages and Prayer

A complaint including a request for punitive damages must also include allegations showing that the plaintiff is entitled to such an award. (Clauson v. Superior Court (1998) 67 Cal.App.4th 1253, 1255.) A plaintiff may seek punitive damages for "oppression, fraud or malice" by the defendant. (See Civ. Code, § 3294(a).) To recover punitive damages from a corporation, a plaintiff must also plead and prove that "authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation." (Civ. Code, § 3294(b).)

"[T]he imposition of punitive damages upon a corporation is based upon its own fault. It is not imposed vicariously by virtue of the fault of others." (City Products Corp. v. Globe Indemnity Co. (1979) 88 Cal.App.3d 31, 36.)

RCLA argues the SAC does not plead ultimate facts Elias was an officer, director, or managing agent of RCLA. RCLA argues the SAC also does not identify any RCLA policy Elias established or plead facts showing that the alleged conduct reflected RCLA policy rather than Elias's personal conduct. (See Mot. at 6:16-18.) RCLA argues the SAC fails to plead ultimate facts showing that a qualifying corporate decisionmaker knew of the risk that Elias would distribute Plaintiff's intimate images and consciously disregarded, authorized, or ratified that conduct. (See id., at 6:26-28, 7:15-17.)

Plaintiff argues Elias is RCLA's Chief Executive Officer as shown by its request for judicial notice. (See Opp. at 3:15-21.) Moreover, the SAC alleges Elias was a managing agent and that RCLA had knowledge of and failed to act on his conduct. (See id., at 4:9-12, 5:3-6.)

RCLA argues the SAC does not explicitly allege Elias is a managing agent. (See Reply at 3:21-23.) RCLA also argues the SAC does not allege ratification on the part of a qualifying decisionmaker who learned of the specific conduct, possessed authority to act for RCLA, and adopted it. (See id., at 4:19-21.)

The SAC sufficiently alleges ratification of Elias' diversion of RCLA funds. The SAC alleges RCLA's officers, directors, or other supervisory personnel knew Elias used RCLA funds to financially support women. (See SAC, ¶ 72.) The SAC alleges "RCLA took no corrective action, failed to supervise or discipline Elias, and permitted him to continue exploiting his position of authority. RCLA thereby ratified Elias's conduct." (SAC, ¶ 73.) However, although these allegations sufficiently allege ratification of Elias' diversion of RCLA funds, they do not allege ratification of Elias' distribution of Plaintiff's images. Thus, Plaintiff cannot rely on these allegations to the extent she seeks punitive damages for distribution of her intimate images.

However, Plaintiff can rely on her allegations that Elias is a managing agent to support punitive damages for distribution of her intimate images. The SAC alleges Elias “directly controls the board of directors, church officers, directors, and managers, including determining whether they serve in the church.” (SAC, ¶ 76.) “[T]he term “managing agent” to include only those corporate employees who exercise substantial independent authority and judgment in their corporate decision making so that their decisions ultimately determine corporate policy.” (White v. Ultramar, Inc. (1999) 21 Cal.4th 563, 566-67.) “[T]he critical inquiry is the degree of discretion the employees possess in making decisions that will ultimately determine corporate policy.” (Id., at 574.) The Court finds the SAC alleges Elias was a managing agent of RCLA as he is alleged to have substantial discretionary authority over RCLA’s board of directors and who can work at RCLA. Because these individuals presumably develop RCLA policy, the SAC alleges Elias indirectly has ultimate discretionary authority over RCLA policy. Thus, the SAC alleges Elias is a managing agent.

Thus, the Court DENIES RCLA’s Motion to Strike the punitive damages allegations and prayer.

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VI. CONCLUSION

Based on the foregoing, the Court SUSTAINS RCLA’s Demurrer WITH LEAVE TO AMEND. The Court DENIES RCLA’s Motion to Strike.

Plaintiff is ordered to filed an amended pleading on or before September 18, 2026.

IT IS SO ORDERED.

DATED: September 2, 2026

Hon. Michael R. Amerian

Judge, Superior Court

[1] All statutory references are to California codes unless stated otherwise.

[2] “A fraudulent promise to marry or to cohabit after marriage does not give rise to a cause of action for damages.” (Civ. Code § 43.4.) “No cause of action arises for: (a) Alienation of affection. (b) Criminal conversation. (c) Seduction of a person over the age of legal consent. (d) Breach of promise of marriage.” (Id., § 43.5.)